



JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedures for the Management of Protected Disclosures

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Policy Statements

The Jamaica Constabulary Force is committed to fostering a work environment that supports the principles of ethics, integrity, transparency and accountability all of which enables the delivery of high quality service. As such, it is the policy of the JCF that:

- Members shall be facilitated and encouraged in the making, in a responsible manner, of disclosures of any improper conduct that may impact the organization's or the public's interest. All such disclosures will be treated with the requisite discretion, confidentiality and tact consistent with the provisions of the Act.
- Systems will be put in place to regulate the receiving, investigating or otherwise dealing with disclosures made under the Act.
- Where disclosures of improper conduct are made, members shall be protected from being subjected to occupational detriment.
- The JCF will not tolerate any harassment or victimization (including informal pressures) of members who report improper conduct, and will take appropriate actions to protect individuals who make such disclosures in good faith.
- Where there is evidence that a member has been harassed or victimized, the JCF will pursue criminal prosecution or misconduct proceedings, whichever is appropriate.
- Systems will be put in place to regulate against the making of false, misleading, reckless and/or malicious disclosures. Where any such disclosure is found to be false, misleading, reckless or malicious, the JCF will pursue criminal prosecution or misconduct proceedings, whichever is appropriate.

Commissioner of Police

18- 06 -2024

1.0 Introduction

The Protected Disclosures Act ("the Act") came into effect on March 8, 2011 with the stated objectives to:

- a. facilitate and encourage the making, in a responsible manner, of disclosures of improper conduct, in the public interest;
- b. regulate the receiving, investigating or otherwise dealing with disclosures of improper conduct; and
- c. protect employees who make specified disclosures from being subjected to occupational detriment.

Section 13 of the Act places obligation on the Jamaica Constabulary Force ("JCF") to *inter alia*, develop and implement policies and standard operating procedures for receiving, investigating and otherwise dealing with disclosures of improper conduct. Against this background, the organization has developed the Jamaica Constabulary Force Policy and Standard Operating Procedures for the Management of Protected Disclosures.

2.0 Purpose

This document outlines the JCF's Policy and Standard Operating Procedures ("SOP") on the Management of Protected Disclosures made pursuant to the Act. It provides the mechanism to facilitate the confidential disclosure of information by members of the JCF that may be reasonably deemed to be improper conduct. The objectives of this Policy and SOP are to:

- a. establish procedures for receiving, investigating and otherwise dealing with disclosures made under the Act;
- b. provide a standardized approach for treating with protected disclosures consistent with the Act;
- c. strengthen the mechanisms within the JCF to encourage members to report internally, as soon as possible, any improper conduct in the workplace, in the manner provided by the Act, and in with the reassurance that their reports will be taken seriously and investigated, where appropriate, and that their confidentiality will be respected, in accordance with section 24 of the Act;
- d. facilitate the making of protected disclosures to prescribed persons outside the JCF; and
- e. establish safeguards to protect against the making of false, misleading, reckless and/or malicious disclosures.

3.0 Scope

This Policy and Standard Operating Procedures applies to all sworn and unsworn members of the JCF and covers only protected disclosures made pursuant to the Act. It does not protect disclosures by members who, by making such disclosures, commit an offence. Neither does this Policy and SOP compel a member to make any disclosure

which will result in self-incrimination. Any information not made in good faith and in the public's interest shall not qualify for protection under this Policy and SOP. Therefore, this policy protects against disclosures made in bad faith, which may be false, misleading reckless or malicious. All references to the Commissioner of Police in this Policy and SOP shall be in his capacity as the employer pursuant to section 13 (1) of the Act. The role of the Commissioner of Police as a Prescribed Person is not contained in this Policy and SOP.

4.0 Abbreviations

DCP Deputy Commissioner of Police
IG Inspector General
JCF Jamaica Constabulary Force
PDA Protected Disclosures Act
SOP Standard Operating Procedure

5.0 Definitions

For the purpose of this policy and SOP, the following definitions shall apply:

5.1 Discloser A member of the JCF who makes a disclosure under section 7 of the Act

5.2 Disclosure
As defined in section 2 of the Act means, *"disclosure of information made by an employee, regarding any conduct of an employer of that employee or another employee of the employer, where the employee has a reasonable belief that the information disclosed shows or tends to show that improper conduct has occurred, is occurring or is likely to occur..."*

5.3 Designated Authority
The Designated Authority is an individual or entity appointed by the Minister of Justice with the responsibility for monitoring compliance with the Act. The Minister has appointed the Integrity Commission as the Designated Authority.

5.4 Designated Officer
A sworn member of the JCF of the Gazetted Rank appointed by the Commissioner of Police, and conferred with the requisite authority to receive, take steps to investigate or otherwise deal with disclosures.

5.5 Improper conduct
As defined in Section 2 of the Act, means any:
5.5.1 criminal offence

- 5.5.2 failure to carry out a legal obligation;
- 5.5.3 conduct that is likely to result in a miscarriage of justice;
- 5.5.4 conduct that is likely to threaten the health or safety of a person;
- 5.5.5 conduct that is likely to threaten or damage the environment;
- 5.5.6 conduct that shows gross mismanagement, impropriety or misconduct in the carrying out of any activity that involves the use of public funds;
- 5.5.7 act of reprisal against or victimization of an employee;
- 5.5.8 conduct that tends to show unfair discrimination on the basis of gender, race, place of origin, social class, colour, religion or political opinion; or
- 5.5.9 willful concealment of any act described in paragraphs (a) to (h).

5.6 Investigation

As defined in section 2 of the Act, means *"the carrying out of an enquiry under this Act in respect of a disclosure."*

5.7 Member

Sworn and unsworn members of the JCF

5.8 Occupational Detriment

As defined in section 2 of the Act means "any act or omission that results in an employee, in relation to his employment, being:

- 5.8.1 subject to disciplinary action;
- 5.8.2 dismissed, suspended, or demoted;
- 5.8.3 harassed, intimidated or victimized;
- 5.8.4 transferred against his/her will;
- 5.8.5 refused transfer or promotion;
- 5.8.6 subject to a term or condition of employment or retirement from employment, that is altered to his/her disadvantage;
- 5.8.7 provided with an adverse reference;
- 5.8.8 denied appointment to any employment, profession or office;
- 5.8.9 threatened with any of the actions specified in paragraphs (a) to (h); or
- 5.8.10 otherwise adversely affected in respect of his/her employment, profession or office, including employment opportunities and job security;"

5.9 Prescribed Person

A prescribed person is one to whom a member can make protected disclosures. These include: Auditor General; Bank of Jamaica; Bureau of Standards; Children's Advocate; Director of Public Prosecution; Electoral Commission of Jamaica; Commissioner of Police; Fair Trading Commission; Financial Services Commission; Independent Commission of Investigation; Integrity Commission;

Tax Administration of Jamaica; National Environment and Planning Agency; Office of Utilities Regulation; Political Ombudsman; and Public Defender.

5.10 Protected Disclosure

A protected disclosure is any disclosure of improper conduct mentioned in section 5.5 of this Policy and SOP that is made by a member to a Designated Officer in accordance with Section 7 of the Act.

NB. Any improper conduct that a member (not being a Designated Officer) is required to detect or investigate as his/her regular duty does not fall under the purview of this Policy and SOP.

6.0 Responsibilities

6.1 Commissioner of Police

The Commissioner of Police has administrative oversight of all matters regarding protected disclosures within the JCF and will:

- 6.1.1 in keeping with section 13 of the Act, appoint the Inspector General (IG) as Designated Officer.
- 6.1.2 ensure that systems are instituted to treat with the proper management of protective disclosures.
- 6.1.3 monitor and ensure strict compliance with this Policy and SOP; and
- 6.1.4 ensure that mechanisms are instituted to protect members who make protected disclosures under the Act from being subjected to occupational detriment.

6.2 Designated Officer

The Designated Officer, where applicable, shall have responsibility to:

- 6.2.1 receive and document all disclosures made by members pursuant to the Act, using the ***Protected Disclosure Form PDA I (Appendix 1)***;
- 6.2.2 treat with confidentiality all disclosures made by members;
- 6.2.3 manage investigations into disclosures and any complaint of occupational detriment made by members;
- 6.2.4 cause investigations into disclosures to be commenced after receiving said disclosure;
- 6.2.5 maintain records of all disclosures received using the ***Protected Disclosure Record PDA2 (Appendix 2)***;
- 6.2.6 prepare a comprehensive report of the findings of investigations and forward under confidential cover to the Commissioner of Police;

- 6.2.7 submit monthly reports to the Commissioner of Police and the Designated Authority under confidential cover of all disclosures received and the status of the investigations using the ***Protected Disclosure Summary Form PDA 3 (Appendix 3)***;
- 6.2.8 make recommendations to the Commissioner of Police regarding any breach of this Policy and SOP or areas for amendments;
- 6.2.9 make the necessary arrangements for a disclosure to be made privately and discretely and if necessary, away from the workplace;
- 6.2.10 be the contact point for general advice about the operation of the Protected Disclosures Act, 2011 and these procedures;
- 6.2.11 cause to be put in writing any disclosure received orally within twenty-four hours of its receipt;
- 6.2.12 take reasonable steps to ensure that the identity of the person who makes a disclosure is kept confidential;
- 6.2.13 determine whether a disclosure meets the criteria of a protected disclosure under the Act and conduct an impartial investigation into the allegation;
- 6.2.14 recommend the referral of disclosures based on the subject matter, the seriousness of its nature or if it prejudices national security, defense or international relations to the appropriate authority.
- 6.2.15 institute systems in order to ensure the proper management of protective disclosures. This includes systems for the receiving, investigation and confidentiality of disclosures made pursuant to the Act;
- 6.2.16 institute mechanisms to protect members who make protected disclosures under the Act from being subjected to occupational detriment.

7.0 Standard Operating Procedures

The following are the procedural guidelines of the JCF that members must adhere to in the management of protected disclosures:

7.1 Making an Internal Disclosure

- 7.1.1 Any member who has reason(s) to believe he/she has information concerning any improper conduct on the part of another member, including his/her supervisor, may make a protected disclosure verbally or in writing, as soon as is reasonably practicable, to his/her Designated Officer. Where the protected disclosure is made verbally, it must be reduced to writing within twenty-four hours after the making of same.
- 7.1.2 Where the disclosure is against the Designated Officer, or, where for any reason it is not desirable to make the disclosure to that member's

Designated Officer, the disclosure may be made to an appropriate Prescribed Person or the Designated Authority.

7.1.3 Where the disclosure is against the Commissioner of Police or, where for any reason it is not desirable to make the disclosure to the Commissioner of Police, the disclosure may be made to the:

- i) appropriate Prescribed Person identified in paragraph 5.9 of this policy; or
- ii) Designated Authority or the Minister.

7.1.4 **Written Disclosure** - Disclosures should be made in writing by completing the prescribed **Form PDA 1**. As far as may be practicable, the member should provide the following details:

- a) his/her full name, rank, position and contact information;
- b) the nature of the improper conduct and the time and place where it is occurring, has occurred or is likely to occur;
- c) the name, rank, position, station or location of the person alleged to be committing, have committed, or is about to commit the improper conduct; and
- d) name and contact information (where known) of any witness(es) to the commission of the improper conduct;
- e) whether he/she had made a disclosure of the same or of some other improper conduct on a previous occasion and if so, about whom and to whom the disclosure was made; and
- f) whether he/she remains in the same employment where the disclosure is being made about his/her employer or a fellow employee.

7.1.5 **Verbal Disclosures-** Where a member is not able to make a disclosure in writing as outlined in **section 8.1.5**, the member may make the disclosure to the Designated Officer verbally. The Designated Officer shall, within twenty-four (24) hours after receiving the disclosure, set out in writing in the prescribed **Form PDA1**, those aspects of the disclosure referred to in **Paragraph 7.1.4 (a - d)** and cause the discloser to affix his or her signature to authenticate the information.

7.2 **Making External Disclosures**

In keeping with the Act, sworn members are encouraged to first raise their concerns and refer disclosures internally. In this case, the process outlined in Paragraph 7.1 applies. However, disclosures may be made externally to Ministers of Government with portfolio responsibility for the specific subject matter,

prescribed persons, the Designated Authority, attorneys-at-law and the Prime Minister pursuant to **Sections 8-12** of the Act.

7.2.1 Disclosures to Ministers of Government or the Prime Minister

Where a member seeks to make a disclosure in relation to a matter that would prejudice the national security, defence or international relations of Jamaica, the member may make such disclosure to either the Minister with portfolio responsibility for that subject matter or the Prime Minister or to both. These disclosures must be made in accordance with the respective Ministry's procedures for handling such matters.

7.2.2 Disclosures to Prescribed Persons

A member may make a disclosure to a Prescribed Person if he/she had previously made the disclosure to a Designated Officer and no action was taken within thirty (30) days to deal with the disclosure. However, a disclosure should only be made to a Prescribed Person if the member reasonably believes that the improper conduct disclosed falls within the area of responsibility of that particular Prescribed Person.

7.2.3 Disclosures to Designated Authority

A member may make a disclosure to the Designated Authority if:

- a) at the time of the disclosure, the member reasonably believes that he/she would be subject to an occupational detriment if the disclosure was made internally;
- b) there is no Prescribed Person in relation to the improper conduct;
- c) the member believes the evidence relating to the improper conduct would be concealed or destroyed if the disclosure is made internally;
or
- d) the member had previously made a disclosure internally or to a Prescribed Person in respect of which no action was taken within 30 days.

7.2.4 Disclosures to Attorneys-at-Law

A member may make a disclosure to an attorney-at-law with the object of obtaining, or during the process of obtaining legal advice. In this context, the disclosure is protected.

7.3 Receiving and Assessing a Disclosure

On receipt of a disclosure, the Designated Officer will:

- 7.3.1 make an assessment of the content and circumstances of the disclosure and determine if it qualifies as a protected disclosure in keeping with **paragraphs 5.5 and 5.10** of this Policy and SOP, and:
 - (a) investigate the disclosure, or
 - (b) refuse to deal with the disclosure in keeping with **paragraph 7.6** of this Policy and SOP or
 - (c) refuse to deal with the disclosure in keeping with **paragraph 7.6.5** of this Policy and SOP and recommend to the member making the disclosure that same should be made to the appropriate Prescribed Person or the Designated Authority.
- 7.3.2 The Designated Officer shall prepare in duplicate a ***Notice of Receipt of Protected Disclosure PDA 4 (Appendix 4)*** and, within ten (10) working days of receiving the disclosure, serve a copy of this notice on the discloser.
- 7.3.3 The Designated Officer shall submit a report to the Commissioner of Police under confidential cover within 48 hours of receipt of a protected disclosure for his/her information. Where in the judgment of the Designated Officer, the gravity of the disclosure dictates urgency, this report shall be submitted within 24 hours.
- 7.3.4 Where on receipt of a report, the Commissioner of Police believes that the disclosure is of such magnitude or seriousness that it is beyond the scope of the organization, or, where it is not appropriate for the matter to be dealt with internally, he/she may direct that the member making such disclosure be referred to the relevant Prescribed Person or the Designated Authority in keeping with paragraph 7.2 of this policy and SOP.

7.4 **Conduct of Investigation**

An investigation into a disclosure shall determine the facts, assess the validity, or otherwise prove or disprove the disclosure. The following steps outline the investigative process:

- 7.4.1 Once the assessment of the protected disclosure has determined that it warrants investigation, same must be commenced forthwith.
- 7.4.2 Investigations into protected disclosures shall be carried out fairly, impartially and in a manner fully consistent with due process.

- 7.4.3 Investigations shall be conducted in accordance with proper investigative procedures and shall utilize the JCF's intelligence resources where necessary. The investigative procedures should include but are not limited to: interviews, collection of statements from all persons from whom evidentiary material may be obtained, as well as the collection of any item which may prove to be of evidentiary value, in accordance with the JCF Crime Reporting and Case Management Policy and Standard Operating Procedures.
- 7.4.4 All members are required to fully cooperate with the investigation and provide such assistance, statement or material, as required, to the Designated Officer.
- 7.4.5 The identity of the discloser must be kept as secret and confidential. In addition, the rights of the discloser, witnesses and persons against whom the disclosure is made must be protected.
- 7.4.6 A member against whom a disclosure of improper conduct has been made shall be advised in writing by the Designated Officer of the following:
- a) the allegation(s) made against him/her;
 - b) that the matter is being investigated;
 - c) the opportunity for him/her to assist the investigation as far as is reasonably possible;
 - d) that he/she will be required to make himself available to be interviewed;
 - e) he/she has the right to make a statement in respect of the allegation(s);
 - f) the protection of his/her rights throughout the investigation; and
 - g) that no conclusion will be drawn until the end of the investigation.

NB. At no time shall the name and any personal information of the discloser be revealed to the person against whom a disclosure is made, or any other person except a person having official duties under this Policy and SOP.

7.5 Post-Investigation and treatment of findings

- 7.5.1 Following the investigation into the disclosure, the Designated Officer shall submit a comprehensive report along with the findings and recommendation(s) to the Commissioner of Police.

7.5.2 Where the report contains a finding that the improper conduct has been proven and such finding has been accepted, the Commissioner of Police may, to the extent practicable:

- a) cause steps to be taken to remedy the improper conduct;
- b) cause steps to be taken to provide redress to any aggrieved party;
- c) direct that disciplinary or criminal proceedings be instituted where appropriate;
- d) as far as possible, institute mechanisms to reduce the opportunity for recurrence of the improper conduct; or
- e) make recommendations to the appropriate authority (eg. Police Services Commission) where applicable, regarding measures to be taken to remedy the improper conduct.

7.5.3 The Designated Officer will communicate the results of the investigation to the discloser and the person against whom the disclosure was made within thirty (30) days of completion of the investigation.

7.6 **Recommendation not to Carry-out Investigation**

In keeping with section 8.3.1(b) of this Policy and SOP, the Designated Officer may refuse to deal with a disclosure or cease an investigation into a disclosure that was already started.

7.6.1 **Refusal to deal with disclosure**

A refusal to deal with a disclosure may be based on any of the following grounds:

- a) the subject matter of the disclosure or the related investigation has been adequately dealt with, or could be more appropriately dealt with by another person;
- b) the subject matter of the disclosure is frivolous or not sufficiently important to warrant an investigation; or
- c) the circumstances surrounding the subject matter of the disclosure have changed (whether by reason of a change in circumstances of the employee or the employer, insufficiency of evidence or otherwise) so that it renders the investigation unnecessary.

7.6.2 Where the Designated Officer proposes not to carry out an investigation, he or she must, immediately forward the file along with the reasons in writing for the proposed decision to the Commissioner of Police.

7.6.3 If the decision not to conduct or otherwise discontinue the investigation is approved by the Commissioner of Police, the Designated Officer shall

within fifteen (15) days of the approval, provide the reason(s) for the decision in writing to the member who made the disclosure.

7.6.4 Where the recommendation not to carry out an investigation is not approved, the Designated Officer shall cause investigations to be commenced immediately in accordance with this Policy and **SOP**.

7.6.5 Where the reason for refusing to deal with the disclosure or discontinuing an investigation into a disclosure is because the disclosure could be more appropriately dealt with by a person external to the organization, the Designated Officer shall within fifteen (15) days of the decision, provide the reason(s) for the decision in writing to the member who made the disclosure and may refer the person making the disclosure to the appropriate Prescribed Person or Designated Authority.

7.7 Confidentiality

The obligation for confidentiality of the identity of the discloser and the content of the disclosures is provided for in the Act, which makes arbitrary communication of confidential information an offence. Consequently:

7.7.1 all disclosures made by members shall be handled expeditiously, with strict confidentiality, sensitivity and tact;

7.7.2 all necessary steps will be taken to protect the discloser against any form of victimization or occupational detriment; and

7.7.3 any statement, document, information or thing provided during the conduct of an investigation shall be regarded and dealt with as secret and confidential, except that any statement given, document, information or thing provided, in furtherance of the investigation or any legal or disciplinary proceedings shall not be regarded as being inconsistent with the obligation for secrecy and confidentiality.

7.8 Protection of Persons making Disclosure

On receipt of a disclosure the Designated Officer shall cause a risk assessment to be conducted to determine the level of protection (if any) of the discloser that is required. Thereafter a comprehensive report outlining the case and the recommendation shall be submitted to the Commissioner of Police, and where protection is required the appropriate protection mechanism instituted accordingly.

7.9 Protection from Occupational Detriment

7.9.1 The JCF can only reasonably protect members who report actual or perceived improper conduct provided that:

- a) the disclosure is made in good faith, without malice or other improper motive;
- b) the member making the disclosure reasonably believes that the information provided in the disclosure and any allegations contained in it are substantially true; and
- c) the member making the disclosure does not commit an offence by making it.

7.9.2 Members who make a protected disclosure will not be at risk of occupational detriment as defined in section 5.8 of this policy, nor be liable in any civil or criminal proceedings, or be subject to any disciplinary action by reason of having made such disclosure, unless the disclosure fails to satisfy the requirements outlined at **Section 8.9.1**.

7.9.3 The JCF will not tolerate any action that may constitute occupational detriment to members who make protected disclosures. Consequently, members who reasonably believe they are being victimized as a result of disclosures made shall make a formal complaint to the Designated Officer.

7.10 **Investigation into reports of Occupational Detriment**

The Designated Officer shall investigate all complaints of occupational detriment and ensure that where there is evidence that the member have been subjected to occupational detriment, he/she shall submit to the Commissioner of Police, a comprehensive report outlining the circumstances and findings, along with the appropriate recommendation(s) that internal disciplinary proceedings and/or criminal proceedings be initiated against the offender as provided for in the Act.

7.11 **False and Malicious Allegations**

7.11.1 A matter may be deemed false and malicious if it is motivated by malice or other causes that could reasonably imply that the disclosure was not made in good faith.

7.11.2 A member who knowingly or recklessly makes a false or malicious allegation, under the guise of a protected disclosure commits an offence under the Act and is liable for criminal prosecution.

7.12 **Treatment of a member who is the subject of a disclosure**

A member who is the subject of a disclosure or against whom a disclosure has been made is entitled to fair procedures. Consequently, where an allegation is made against a member, the JCF will ensure that his or her rights are protected in

accordance with the general principles of natural justice and fair procedures in keeping with the Act.

7.13 Records and Reports

7.13.1 The Designated Officer shall keep a record of the number and types of disclosures received, and the status of each file.

7.13.2 Suitable access control mechanisms shall be implemented by the Designated Officer to ensure the security of all materials (electronic and hardcopy), which may include password protection and limitations on access rights.

7.13.3 The Designated Officer will keep all printed material in files that are clearly marked as a protected disclosure matter and include a prominent warning on the front of the file that penalties apply to any unauthorized divulging of information concerning a protected disclosure. A unique identification number will also be used to represent each case file.

7.13.4 The Commissioner will cause the Designated Officer to keep a record of all protected disclosures received on the Form PDA 2 and submit a monthly return to the Designated Authority using the Form PDA3.

7.13.5 All sensitive information or documents shall be securely packaged, sealed, appropriately addressed, labeled 'Confidential' and hand delivered to the intended recipient against a signature. In special circumstances sensitive information/document may be transmitted electronically with password protection.

7.14 Offences under the Protected Disclosures Act 2011

7.14.1 According to Section 23 of the Act, a person commits an offence when he or she:

- a) prevents, restrains or restricts any employee from making a protected disclosure;
- b) intimidates any employee who has made or intends to make a protected disclosure;
- c) induces any person by threats, promises or otherwise to contravene this Act; or
- d) being an employer (i) subjects an employee or former employee of that person to occupational detriment as a consequence of the employee or former employee making a protected disclosure; (ii)

- refuses, in bad faith, to receive a disclosure or carry out an investigation in relation to a disclosure;
- e) being an employee, purports to make a disclosure under this Act knowing that it contains a statement that is false or misleading, or reckless as to whether the statement is false or misleading;
- f) aids, abets, procures or conspires with any other person to contravene this Act; or
- g) without reasonable excuse, fails to comply with a requirement imposed by the designated authority in the lawful exercise of the functions of the authority under this Act.

7.14.2 Section 24 of the Protected Disclosures Act also makes it an offence for a person receiving, investigating or otherwise dealing with a disclosure to breach the requirement for secrecy or confidentiality.

7.15 **Penalties**

- a) A conviction for the offences outlined at 7.14.1(a) to (f) before the Parish Court carries a fine of Two Million Dollars or a term of imprisonment not exceeding two years or both fine and imprisonment. A conviction for the offences outlined at 7.14.1(a) to (f) before the Circuit Court carries a fine or imprisonment for a term not exceeding five years or both fine and imprisonment.
- b) A conviction for the offence outlined at 7.14.1(g) before the Parish Court carries a fine not exceeding Two Hundred and Fifty Thousand Dollars.
- c) A person who is convicted for an offence outlined at paragraph 7.14.2 is liable to a fine not exceeding Two Million Dollars or to imprisonment for a term not exceeding two years or to both a fine and imprisonment, before a Parish Court.

8.0 **Legislative Authority/Guiding Principles**

This Policy and Standard Operating Procedures on Protected Disclosures shall be read in conjunction with the following:

- 8.1 The Protected Disclosures Act, 2011
- 8.2 The Protected Disclosures Act, 2011 Procedural Guidelines
- 8.3 The Constabulary Force Act
- 8.4 The Police Services Regulations 1961

- 8.5 The Book of Rules for the Guidance and General Direction of the Jamaica Constabulary Force, 1988
- 8.6 The Jamaica Constabulary Force Ethics and Integrity Policy
- 8.7 The Jamaica Constabulary Force Channel of Communication for Complaints of Members - F.O. 2983 dated August 5, 2004

9.0 Relevant Forms

The following records must be completed and/or updated by the Designated Officer:

- 9.1 Protected Disclosures Form - PDA1
- 9.2 Protected Disclosures Record- PDA2
- 9.3 Protected Disclosures Summary Report - PDA3
- 9.4 Notice of Receipt of Protected Disclosure-PDA4



Jamaica Constabulary Force
Protected Disclosure Form
The Protected Disclosures Act, 201]-Procedural Guidelines
FORM PDA1

Agency: Jamaica Constabulary Force

First Name	Middle Name	Surname	TRN
Address			
Occupation			
Nature of Improper Conduct			

Form PDAI, *contd.*

Names of Alleged Party of Improper Conduct	
Time and Place of Alleged Party of Improper Conduct	
Name of Witness	Names of Witness
Address of Witness	Address of Witness
Brief Description of Witness	Brief Description of Witness
Previous Disclosures Made (State about who and to whom the disclosure was made)	
State whether still in employment (where the disclosure is about the employer or fellow employees)	

I make this disclosure in good faith and in the public interest. I believe it to be true and accurate to the best of my knowledge and I know that I would be liable for prosecution if this disclosure contains and statement that I know to be false or misleading.

Signature of Person Making Disclosure

Date

Name of Witness

Signature of Witness

Date



**Jamaica Constabulary Force
Protected Disclosure Record**

The Protected Disclosure Act, 2011- Procedural Guidelines

Agency: Jamaica Constabulary Force

FORM PDA2

Date Received	Disclosure No.	Summary of Improper Conduct Disclosed	Date and Entity of Referral	Date Closed	Decision Taken



Jamaica Constabulary Force
Protected Disclosures Summary Report
Protected Disclosures Act, 2011- Procedural Guidelines

Agency: Jamaica Constabulary Force

FORMPDA3

Date	Disclosure No.	Date Received	Summary of Improper Conduct Disclosed	Action Taken (Brief Description)	Days since last notification to Discloser	Status/Date Closed	Decision Taken



**Jamaica Constabulary Force
Notice of Receipt of Protected Disclosure Form - PDA4**

Constabulary Station

_____ 20_____

Name & Address of Discloser

Dear Sir/Madam,

This serves to acknowledge receipt of your disclosure made pursuant to the Protected Disclosures Act made at

.....onat
{Location} {dd/mm/yyyy} (time)

Sincerely,

Designated Officer

Signature of Discloser